

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



October 19, 2021

The Honorable B. Hight
Judge of the Superior Court
County of Los Angeles
825 Maple Avenue
Torrance, CA 90503

Re: Joseph Davis
CDCR No: T07852
Case No: YA040078
Date of Sentence: December 22, 2000

Dear Honorable B. Hight:

The purpose of this letter is to provide the court with the authority to resentence inmate Joseph Davis, T07852 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Davis was convicted by a jury trial and sentenced as a third strike offender on count 1 for PC 215(A), Carjacking, with a count enhancement of PC 12022(B)(1), Use of Dangerous/Deadly Weapon; count 2 (stayed) for PC 245(A)(1), Assault with Deadly Weapon Likely to Produce Great Bodily Injury, with a count enhancement of PC 12022(B)(1), Use of Dangerous/Deadly Weapon; count 3 for PC 664-211, Attempted Robbery: 2nd Degree, with a count enhancement of PC 12022(B)(1), Use of Dangerous/Deadly Weapon; and count 4 (stayed) of Vehicle Code 10851(A), Take Vehicle without Owner's Consent. Davis also received three term enhancements (one stayed) of PC 667(A)(1), Prior Felony Conviction of Serious Offense.

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Davis has not received and Rules Violation Reports since his date of incarceration.

Having reviewed the enclosed documentation it appears that inmate Davis' sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in blue ink, appearing to read "K. Allison".

KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office